

Power to allow
intervention
on terms.

3. In every case, not already provided for by law, in which any person is charged with adultery with any party to a suit, or in which the court may consider, in the interest of any person not already a party to the suit, that such person should be made a party to the suit, the court may, if it thinks fit, allow that person to intervene upon such terms (if any) as the court may think just.

Short title.

4. This Act may be cited as the Matrimonial Causes Act, 1907, and may be cited with the Matrimonial Causes Acts, 1857 to 1878.

CHAPTER 13.

An Act to grant certain duties of Customs and Inland Revenue, to alter other duties, and to amend the Law relating to Customs and Inland Revenue and the National Debt, and to make other provisions for the financial arrangements of the year. [9th August 1907.]

Most Gracious Sovereign,

WE, Your Majesty's most dutiful and loyal subjects the Commons of the United Kingdom of Great Britain and Ireland in Parliament assembled, towards raising the necessary supplies to defray Your Majesty's public expenses, and making an addition to the public revenue, have freely and voluntarily resolved to give and grant unto Your Majesty the several duties herein-after mentioned; and do therefore most humbly beseech Your Majesty that it may be enacted, and be it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same; as follows :

PART I.

CUSTOMS AND EXCISE.

Duty on tea.
6 Edw. 7. c. 8.

1. The duty of customs payable on tea until the fourteenth day of May nineteen hundred and seven, under the Finance Act, 1906, shall be deemed to have been continued as from that date and shall continue to be charged, levied, and paid until the first day of July nineteen hundred and eight on the importation thereof into Great Britain or Ireland (that is to say) :—

Tea, the pound

fivepence.

Continuance of
additional cus-
toms duties and
drawbacks on
tobacco, beer,
and spirits.
68 & 64 Vict.
c. 7.

2. The additional duties of customs on tobacco, beer, and spirits imposed by sections two, three, four, and five of the Finance Act, 1900 (including the increased duties imposed by section five of that Act), shall continue to be charged, levied, and paid, and the additional drawback allowed under the said section four shall continue to be allowed, until Parliament otherwise determine, and

those duties and that drawback shall be deemed to have been continued as from the first day of July nineteen hundred and seven.

3. The additional duties of excise on beer and spirits imposed by sections six and seven of the Finance Act, 1900, shall continue to be charged, levied, and paid, and the additional drawback allowed under the said section six shall continue to be allowed, until Parliament otherwise determine, and those duties and that drawback shall be deemed to have been continued as from the first day of July nineteen hundred and seven.

Continuance of additional excise duties and drawbacks on beer and spirits.

4.—(1) The Commissioners of Customs and the Commissioners of Inland Revenue may jointly make regulations authorising the use of any means described in the regulations for ascertaining for any purpose the strength or weight of spirits.

Means of ascertaining — strength or weight of spirits.

(2) Where under any enactment Sykes's hydrometer is directed to be used or may be used for the purpose of ascertaining the strength or weight of spirits, any means so authorised by regulations may be used instead of Sykes's hydrometer, and references to Sykes's hydrometer in any enactment shall be construed accordingly.

(3) Any regulations made under this section shall be published in the London, Edinburgh, and Dublin Gazette, and shall take effect from the date of publication, or such later date as may be mentioned in the regulations for the purpose.

(4) The expression "spirits" in this section has the same meaning as in the Spirits Act, 1880.

43 & 44 Vict. c. 24.

5. Notwithstanding anything to the contrary in section ten of the Revenue Act, 1883, and subject to the conditions there set forth, gold and silver plate imported into Great Britain or Ireland may be delivered into the hands of the officers of any assay office selected by the importer though it be not the assay office nearest to the port of importation, and may, upon security being given to the satisfaction of the Commissioners of Customs, be removed to the assay office without being in charge of an officer of customs.

Amendment of the Revenue Act, 1883, as to imported plate. 46 & 47 Vict. c. 55.

PART II.

STAMPS:

6. The limitation of the exemption numbered (2) under the heading "Affidavit and Statutory Declaration" in the First Schedule to the Stamp Act, 1891, to affidavits or declarations made before a justice of the peace shall cease to have effect.

Extension of exemption from stamp duty in case of certain affidavits and declarations. 54 & 55 Vict. c. 30.

7. Any agreement for or relating to the supply of goods on hire, whereby the goods in consideration of periodical payments will or may become the property of the person to whom they are supplied, shall be charged with stamp duty as an agreement, or, if under seal (or in Scotland with a clause of registration), as

Stamping of hire-purchase agreement.

a deed, as the case requires, and the exemption numbered (3) under the heading "Agreement or any Memorandum of an Agreement," in the First Schedule to the Stamp Act, 1891 (which exempts agreements for the sale of goods), shall not apply in the case of any such instrument.

Provisions as to
policies of in-
surance.

8.—(1) It is hereby declared, for the removal of doubts, that "a policy of insurance for any payment agreed to be made" by way of indemnity against loss or damage of or to any "property" within the meaning of the Stamp Act, 1891, includes any notice or advertisement in a newspaper or other publication which purports to insure such payment.

(2) The provisions of section one hundred and sixteen of the said Act (which relates to composition for stamp duty on policies of insurance against accident) shall apply to policies of insurance for any payment agreed to be made by way of indemnity against loss or damage of or to any property as they apply to policies of insurance against accident.

62 & 63 Vict.
c. 9.

(3) Section eleven of the Finance Act, 1899 (which relates to policies of insurance in respect of injury to workmen), shall be read as if two pounds were substituted for one pound as the amount of the annual premium therein mentioned.

Proxies exe-
cuted abroad.

9. So much of subsection (2) of section eighty of the Stamp Act, 1891, as prevents the stamping after execution of a letter or power of attorney or voting paper charged with the duty of one penny shall cease to apply as regards any such instrument which has been first executed at any place out of the United Kingdom, and accordingly any such instrument so executed after the commencement of this Act may be stamped after execution in accordance with section fifteen of the said Act.

Reduction of
duty on loan
capital issued
for the purpose
of the conver-
sion or consoli-
dation of
existing
capital.
62 & 63 Vict.
c. 9.

10.—(1) Where it is shown to the satisfaction of the Commissioners that the loan capital issued by any local authority, corporation, company, or body of persons, in respect of which a statement has, after the commencement of this Act, been delivered to the Commissioners under section eight of the Finance Act, 1899, has been wholly or partly applied for the purpose of the conversion or consolidation of then existing loan capital, that authority, corporation, company, or body of persons, as the case may be, shall be entitled to repayment in respect of the duty charged on the statement so delivered at the rate of two shillings for every hundred pounds of the capital to which the statement relates which is so shown to have been applied for the purpose of the conversion or consolidation of then existing loan capital; but this section shall not apply to any duty payable in respect of a mortgage or marketable security which has been paid on any trust deed or other document securing the loan capital which has been issued.

(2) If it is represented to the Commissioners by any such local authority, corporation, company, or body of persons that loan capital about to be issued by them is to be applied, in

whole or in part, for the purpose of the conversion or consolidation of existing loan capital, the Commissioners may postpone the time for the delivery of the statement and the payment of duty under section eight of the Finance Act, 1899, until the capital has been issued or until such other time as the Commissioners think fit for the purpose of enabling the payment and repayment of the duty to take place as one transaction.

11. The duty payable under the Stamp Act, 1891, on any debenture or certificate for entitling any person to receive any allowance by way of drawback or otherwise payable out of the revenue of customs or excise, for or in respect of any goods, wares, or merchandise exported or shipped to be exported from the United Kingdom to any part beyond the sea, and on any certificate of any goods, wares, or merchandise having been duly entered inwards, which shall be entered outwards for exportation at the port of importation, or be removed from thence to any other port for the more convenient exportation thereof, where such certificate is issued for enabling a person to obtain a debenture or certificate entitling him to receive a drawback of any duty of customs, shall cease to be payable, and any such debentures or certificates shall not be liable to stamp duty.

Remission of stamp duty on Customs and Excise debentures and certificates.

PART III.

DEATH DUTIES.

12. The scale set out in the First Schedule to this Act shall, in the case of persons dying on or after the nineteenth day of April nineteen hundred and seven, be substituted for the scale of rates of estate duty set out in section seventeen of the Finance Act, 1894 (in this Part of this Act referred to as the principal Act):

Amended rates of estate duty.

57 & 58 Vict. c. 30.

Provided that where an interest in expectancy (within the meaning of Part I. of the principal Act) in any property has before the nineteenth day of April nineteen hundred and seven been *bonâ fide* sold or mortgaged for full consideration in money or money's worth, then no other duty on that property shall be payable by the purchaser or mortgagee when the interest falls into possession than would have been payable if this section had not passed; and in the case of a mortgage any higher duty payable by the mortgagor shall rank as a charge subsequent to that of the mortgagee.

13. The power of the Commissioners under subsection (11) of section eight of the principal Act to remit the payment of estate duty or interest thereon shall apply to the other duties which are included in the definition of death duties in subsection (3) of section thirteen of that Act as well as to estate duty.

Extension of power to remit death duties.

14. The Commissioners may, if they think fit, entertain any application made for the purpose of subsection (2) of section

Power to entertain application.

tion for discharge from claims for estate duty made at any time.

eleven of the principal Act (which relates to discharge from claims for estate duty), at whatever time the application is made; and, as respects any application so entertained, the provisions of that subsection shall have effect notwithstanding that the application is made before the lapse of the two years mentioned in that subsection.

Calculation of the allowance to be made in respect of duty paid before the commencement of the Finance Act, 1894.
59 & 60 Vict.
c. 28.

15. The deduction to be allowed under section twenty-one of the Finance Act, 1896, in respect of death duties previously paid on property on which estate duty is payable shall, instead of being the amount of the duty paid or payable, be the amount which would have been payable on account of the duty if the duty were calculated on the value of the property on which estate duty is payable: Provided that, if as respects any such deduction the person by whom the duty is payable requires the Commissioners, on the first delivery of his account, to calculate the deduction as if this section had not passed, the deduction shall be so calculated.

Limited aggregation of certain settled property abolished.
63 & 64 Vict.
c. 7.

16. In the case of persons dying on or after the nineteenth day of April nineteen hundred and seven, any settled property which would, under subsection (2) of section twelve of the Finance Act, 1900, be aggregated with other property so as to enhance the rate of duty to the limited extent provided in that section, shall, for the purposes of the principal Act, instead of being so aggregated, be treated as an estate by itself.

PART IV.

LOCAL TAXATION ACCOUNT.

Provision with respect to certain grants to local taxation accounts.

17.—(1) The grants specified in the Second Schedule to this Act shall instead of being charged in manner provided by the Acts relating to those grants, be charged on and paid out of the Consolidated Fund or the growing produce thereof, but in the case of grants which are payable during the continuance of any temporary Act only so long as that Act is continued.

59 & 60 Vict.
c. 36.

(2) The proceeds of the local taxation (customs and excise) duties, and of the duties on local taxation licences (including any duty charged under subsection (1) of section eight of the Locomotives on Highways Act, 1896) payable under any Act in force at the commencement of this Act into any local taxation account, shall, instead of being paid into that account, be paid into the Exchequer, and there shall be paid into any such local taxation account out of the Consolidated Fund or the growing produce thereof a sum equal to the amount which would have been paid into that account as the proceeds of the duties if this Act had not passed.

(3) Where under this section or under any other enactment the amount of any sum paid into any local taxation account is made to depend on the proceeds of the duties on local taxation

licences, those proceeds shall be calculated, in the event of any alteration of the rate of duties, as if the duties were at the rate in force at the commencement of this Act:

Provided that, if in any year owing to any alteration in the rate of duties the rate of any such duty is higher than the rate in force at the commencement of this Act, and the proceeds of that duty in that year as so calculated are less than the average proceeds of the duty for the three years ending the thirty-first day of March nineteen hundred and seven, the proceeds of the duty instead of being calculated as aforesaid shall be deemed to be the amount of those average proceeds, and the Commissioners of Inland Revenue shall give their certificates as to the sums ascertained to be the proceeds of those duties accordingly.

(4) In this section the expression "proceeds of duties," includes sums ascertained to be the proceeds of the duties, and any reference in any enactment to the duties or proceeds of the duties referred to in this section shall, so far as relates to the distribution of or mode of dealing with those duties or proceeds, be construed as a reference to the sums to be paid in lieu thereof under this section.

(5) This section shall have effect as from the commencement of the current financial year, and, as respects any payment made or other thing done between the commencement of the current financial year and the date of the passing of this Act, the Treasury may cause such adjustments of accounts to be made as are required to give effect to the provisions of this section.

PART V.

INCOME TAX.

18.—(1) Income tax for the year beginning on the sixth day of April nineteen hundred and seven shall be charged at the rate of one shilling. Income tax for 1907-8.

(2) All such enactments relating to income tax as were in force on the fifth day of April nineteen hundred and seven shall, subject to any amendments made by this Act, have full force and effect with respect to the duty of income tax hereby granted.

(3) The annual value of any property which has been adopted for the purpose either of income tax under Schedules A. and B. in the Income Tax Act, 1853, or of inhabited house duty, during the year ending on the fifth day of April nineteen hundred and seven, shall be taken as the annual value of such property for the same purpose during the next subsequent year; provided that this subsection—

(a) so far as respects the duty on inhabited houses in Scotland, shall be construed with the substitution of the twenty-fourth day of May for the fifth day of April; and

(b) shall not apply to the Metropolis as defined by the Valuation (Metropolis) Act, 1869.

32 & 33 Vict.
c. 67.

Relief in respect of earned income where total income does not exceed 2,000*l*.

19.—(1) Any individual who claims and proves, in manner provided by this section, that his total income from all sources does not exceed two thousand pounds, and that any part of that income is earned income, shall be entitled, subject to the provisions of this section, to such relief from income tax as will reduce the amount payable on the earned income to the amount which would be payable if the tax were charged on that income at the rate of nine pence.

(2) The relief given by this section shall be in addition to and not in derogation of any exemption or other relief or abatement under the Income Tax Acts, except that where an individual is entitled to relief from income tax under section eight of the Finance Act, 1898, or, in respect of the payment of premiums, under section fifty-four of the Income Tax Act, 1853 (as extended by any subsequent enactment), relief shall be given under this section only in respect of such earned income (if any) as remains after deducting therefrom the amount on which he is relieved of income tax under the said sections eight and fifty-four.

(3) Where relief is given under section eight of the Finance Act, 1898, or section fifty-four of the Income Tax Act, 1853, by way of repayment of the tax after relief has been given under this section, the amount repaid shall be adjusted so that the total amount of the relief given under this section and under the said sections eight and fifty-four does not exceed the amount which would have been given if the whole relief had been claimed simultaneously.

(4) An individual who desires relief under this section must, in cases where he is required to make a return for the purpose of the assessment of income tax, claim that relief at the time the return is made and must, in any case, claim that relief before the thirtieth day of September in the year for which the tax is charged.

For the purpose of making a claim for relief under this section with respect to income tax charged under this Act for the current year, any individual may, before the thirtieth day of September nineteen hundred and seven, substitute a fresh return for any return previously made by him.

(5) An individual shall not be entitled to relief under this section in respect of any income the tax on which he is entitled to charge against any other person, or to deduct, retain, or satisfy out of any payment which he is liable to make to any other person.

(6) Subject to the provisions of this section, all the provisions of the Income Tax Acts which relate to claims for exemption, relief, or abatement, or the proof to be given with respect to those claims, shall apply to claims for relief under this section and the proof to be given with respect to those claims.

(7) For the purposes of this section the expression "income" means income as estimated according to the several rules and

61 & 62 Vict.
c. 10.
16 & 17 Vict.
c. 34.

directions of the Income Tax Acts; and the expression "earned income" means—

- (a) any income arising in respect of any remuneration from any office or employment of profit held by the individual, or in respect of any pension, superannuation, or other allowance, deferred pay, or compensation for loss of office given in respect of the past services of the individual or of the husband or parent of the individual in any office or employment of profit, whether the individual or husband or parent of the individual shall have contributed to such pension, superannuation allowance, or deferred pay or not; and
- (b) any income from any property which is attached to or forms part of the emoluments of any office or employment of profit held by the individual; and
- (c) any income which is charged under Schedules B or D in the Income Tax Act, 1853, or the rules prescribed by Schedule D in the Income Tax Act, 1842, and is immediately derived by the individual from the carrying on or exercise by him of his profession, trade, or vocation either as an individual, or, in the case of a partnership, as a partner personally acting therein.

In cases where a wife's profits are deemed to be profits of the husband, any reference in this provision to the individual includes either the husband or the wife.

(8) Section thirty-four of the Finance Act, 1894, shall cease to have effect so far as it gives relief or abatement to persons who are entitled to relief under section eight of the Finance Act, 1898.

20. Where an individual carrying on or exercising any profession, trade or vocation in partnership with any other person makes any claim for exemption, relief, or abatement under the Income Tax Acts, the income of the individual from the partnership for the year to which the claim relates may be treated separately for the purpose of any such exemption, relief, or abatement, and if so treated shall be deemed to be the share to which he is entitled during the said year in the partnership profits, such profits being estimated according to the several rules and directions of those Acts.

Special provisions applicable to partners.

21.—(1) Every employer, when required to do so by notice from an assessor, shall, within the time limited by the notice, prepare and deliver to the assessor a return of the names and places of residence of any persons employed by him, to whom this provision applies, and of the payments made to those persons in respect of that employment, and section fifty-five of the Income Tax Act, 1842, shall apply with respect to any such return as it applies with respect to the lists, declarations, or statements mentioned in that section.

Particulars to be given by employers.

5 & 6 Vict. c. 35.

This provision applies to all persons employed by an employer, except persons who are not employed in any other

employment, and whose remuneration in the employment for the year does not exceed the sum for the time being fixed as the limit for total exemption from income tax.

(2) Where the employer is a body of persons, corporate or unincorporate (including a company), the secretary of the body, or other officer (by whatever name called) performing the duties of secretary, shall be deemed to be the employer for the purposes of this provision, and any director of a company, or person engaged in the management of a company, shall be deemed to be a person employed.

Liability to
make returns.

22.—(1) Every person upon whom notice is served in manner prescribed by section forty-eight of the Income Tax Act, 1842 (which relates to the delivery of notices by assessors), requiring him to make a return of any profits, gains, or income in respect of which he is chargeable with duty under Schedule D. or Schedule E. in the Income Tax Act, 1853, shall make a return in the form required by the notice, whether he is or is not chargeable with duty, and in default shall be liable to a penalty under section fifty-five of the Income Tax Act, 1842, accordingly :

Provided that a penalty inflicted in the case of a person proceeded against for not complying with this provision, who proves that he was not chargeable to duties, shall not exceed five pounds for any one offence.

42 & 43 Vict.
c. 21.

(2) The duties imposed on officers of any corporation, company, fraternity, fellowship, or society by sections forty and fifty-four of the Income Tax Act, 1842, and by section eighteen of the Customs and Inland Revenue Act, 1879, shall, in the case of any company, be performed by the secretary of the company or other officer (by whatever name called) performing the duties of secretary.

Extension of
time for cer-
tain proceed-
ings.

31 Eliz. c. 5.
43 & 44 Vict.
c. 19.
53 & 54 Vict.
c. 21.

23.—(1) Notwithstanding anything in an Act concerning Informers, being chapter five of the Acts of the thirty-first year of the reign of Queen Elizabeth, or in subsection (4) of section twenty-one of the Taxes Management Act, 1880, or in subsection (2) of section twenty-two of the Inland Revenue Regulation Act, 1890, or in any other enactment, proceedings for the recovery of any fine or penalty incurred under the Income Tax Acts may be commenced within three years next after the fine or penalty is incurred.

43 & 44 Vict.
c. 19.

53 & 54 Vict.
c. 8.

(2) The time during which an assessment may be amended or an additional first assessment made under section fifty-two of the Taxes Management Act, 1880 (which relates to the amendment of assessments), or during which an assessment may be made on the estate of a deceased person under section twenty-four of the Customs and Inland Revenue Act, 1890 (which relates to the power to make such assessments), shall be any time within the year of assessment or within three years after the expiration thereof, and the time during which in cases of omission to charge any person a charge may be made and

allowed or signed under section sixty-three of the Taxes Management Act, 1880 (which relates to the powers of surveyors to make such charges), shall be a period of three years after the expiration of the year for which the person ought to have been charged.

(3) Nothing in this section shall affect proceedings for the recovery of fines or penalties incurred before the commencement of this Act, or extend the time during which any assessment may be made or amended, or a charge may be made on any person in respect of income tax charged under any Act passed before the commencement of this Act.

24.—(1) Section one hundred and thirty-three of the Income Tax Act, 1842, and section six of the Revenue Act, 1865 (which provide for the reduction of assessments or the repayment of duty in certain cases where the profits of the year of assessment fall short of the sum on which the assessment has been made), shall cease to have effect as respects income tax charged for the year beginning the sixth day of April nineteen hundred and seven, or for any subsequent year.

Provisions with respect to computing profits by average of three years.
28 & 29 Vict.
c. 30.

(2) Where a person charged or chargeable with income tax in respect of any profession, trade, or vocation which has been set up or commenced within the period of three years upon the average of which the profits or gains are to be taken under the Income Tax Acts, or within the year of assessment, proves at the end of the year of assessment to the satisfaction of the commissioners by whom the assessment has been or can be made that the actual profits or gains arising from the profession, trade, or vocation in the year of assessment fall short of the profits or gains as computed in accordance with those Acts, he shall be entitled to be charged on the actual amount of the profits or gains so arising instead of on the amount of the profits or gains so computed, and, if he has paid the full amount of the tax on the profits or gains so computed, be entitled to repayment of the amount overpaid.

(3) Where a profession, trade, or vocation is discontinued in any year, any person charged or chargeable with income tax in respect of that profession, trade, or vocation, shall be entitled to be charged on the actual amount of the profits or gains arising from the profession, trade, or vocation in that year, and shall also, if he proves to the satisfaction of the Commissioners, by whom the assessment has been or could have been made, that the total amount of the income tax paid during the three previous years in respect of that profession, trade, or vocation, exceeds the total amount which would have been paid if he had been assessed in each of those years on the actual amount of the profits or gains arising in respect of the profession, trade, or vocation, be entitled to repayment of the excess.

25.—(1) In estimating, under any schedule of the Income Tax Acts, the amount of the profits and gains arising from any trade, manufacture, adventure, concern, profession, or vocation, Payment of tax on patent royalties by deduction.

no deduction shall be made on account of any royalty, or other sum, paid in respect of the user of a patent, but the person paying the royalty or sum shall be authorised, on making the payment, to deduct and retain thereout the amount of the rate of income tax chargeable during the period through which the royalty or sum was accruing due.

51 & 52 Vict.
c. 8.

(2) Subsection (3) of section twenty-four of the Customs and Inland Revenue Act, 1888, shall apply to any such royalties or sums as it applies to interest of money or annuities charged with income tax under Schedule D. in the Income Tax Act, 1853.

Provisions
with respect to
deductions for
wear and tear
of machinery
or plant.

26.—(1) For the purpose of enabling deductions for wear and tear to be allowed by the additional Commissioners, claims in respect of those deductions shall be included in the annual statement required to be delivered under the Income Tax Acts of the profits or gains of the concern for the purpose of which the machinery or plant is used, and the additional Commissioners in assessing those profits and gains shall make such allowances in respect of those claims as they think just and reasonable.

(2) No deduction for wear and tear or repayment on account of any such deduction shall be allowed in any year if the deduction when added to the deductions allowed on that account in any previous years to the person by whom the concern is carried on will make the aggregate amount of the deductions exceed the actual cost to that person of the machinery or plant, including in that actual cost any expenditure in the nature of capital expenditure on the machinery or plant by way of renewal, improvement, or reinstatement.

(3) Where as respects any trade, manufacture, adventure, or concern full effect cannot be given to the deduction for wear and tear in any year owing to there being no profits or gains chargeable with income tax in that year, or owing to the profits or gains so chargeable being less than the deduction, the deduction or part of the deduction to which effect has not been given, as the case may be, shall, for the purpose of making the assessment for the following year, be added to the amount of the deduction for wear and tear for that year and deemed to be part of that deduction, or if there is no such deduction for that year, be deemed to be the deduction for that year, and so on for succeeding years.

41 & 42 Vict.
c. 15.

(4) In this section the expression "deduction for wear and tear" means the deduction allowed, or which would be allowed, under section twelve of the Customs and Inland Revenue Act, 1878, as representing the diminished value, by reason of wear and tear during the year, of machinery or plant used for the purposes of any trade, manufacture, adventure, or concern.

Power of Com-
missioners for
special pur-
poses to allow
relief under
s. 23 of
53 & 54 Vict.
c. 8.

27. Any application for relief under section twenty-three of the Customs and Inland Revenue Act, 1890, may be made either to the Commissioners for the general purposes of the Acts relating to income tax as provided in that section or to the Commissioners for the special purposes of those Acts, and the last-named

Commissioners shall have the same power under that section as the first-named Commissioners have.

28. Where a clergyman or minister of any religious denomination pays rent for a dwelling-house, and uses any part thereof mainly and substantially for the purposes of his duty or function as such clergyman or minister, such part of the rent of the dwelling-house, not exceeding one-eighth, as the Commissioners by whom any assessment for income tax is made may allow, shall be treated for the purposes of section fifty-two of the Income Tax Act, 1853, as expenses to which the provisions of that section as to deduction and repayment apply.

Deductions by clergymen or ministers of religion in respect of dwelling-houses in certain cases.

PART VI.

NATIONAL DEBT.

29. The amount of the permanent annual charge for the National Debt under section one of the Sinking Fund Act, 1875, shall, during the current financial year, be the sum of twenty-nine and a half million instead of twenty-eight million pounds, and subsection (4) of section seven of the Finance Act, 1905, shall, as respects the current financial year, have effect accordingly.

Reduction of debt.
38 & 39 Vict.
c. 45

PART VII.

GENERAL.

30.—(1) The Acts specified in the Third Schedule to this Act are hereby repealed to the extent mentioned in the third column of that Schedule.

Repeal, construction, and short title.

(2) Part I. of this Act so far as it relates to duties of customs shall be construed together with the Customs Consolidation Act, 1876, and the Acts amending that Act, and so far as it relates to duties of excise shall be construed together with the Acts which relate to the duties of excise and the management of those duties.

39 & 40 Vict.
c. 36.

Part II. of this Act shall be construed together with the Stamp Act, 1891.

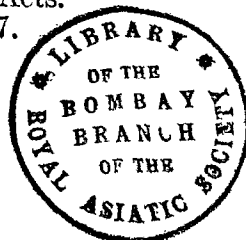
54 & 55 Vict.
c. 39.

Part III. of this Act shall be construed together with the Finance Act, 1894.

57 & 58 Vict.
c. 30.

Part V. of this Act shall be construed together with the Income Tax Acts, 1842 and 1853, and any other enactments relating to Income Tax, and those enactments and Part V. of this Act are in this Act referred to as the Income Tax Acts.

(3) This Act may be cited as the Finance Act, 1907.



SCHEDULES.

Section 12.

FIRST SCHEDULE.

SCALE OF RATES OF ESTATE DUTY.

Where the Principal Value of the Estate				Estate Duty shall be payable at the Rate per Cent. of
Exceeds	£	100 and does not exceed -	£	
"	500	"	500	One pound.
"	1,000	"	1,000	Two pounds.
"	10,000	"	10,000	Three pounds.
"	25,000	"	25,000	Four pounds.
"	50,000	"	50,000	Four pounds ten shillings..
"	75,000	"	75,000	Five pounds.
"	100,000	"	100,000	Five pounds ten shillings.
"	150,000	"	150,000	Six pounds.
"	250,000	"	250,000	Seven pounds.
"	500,000	"	500,000	Eight pounds.
"	750,000	"	750,000	Nine pounds.
"	1,000,000	"	1,000,000	Ten pounds.
"	1,500,000	"	1,500,000	Ten pounds on one million, and eleven pounds on the remainder.
"	2,000,000	"	2,000,000	Ten pounds on one million, and twelve pounds on the remainder.
"	2,500,000	"	2,500,000	Ten pounds on one million, and thirteen pounds on the remainder.
"	3,000,000	"	3,000,000	Ten pounds on one million, and fourteen pounds on the remainder.
"	3,000,000	- - - - -	- - - - -	Ten pounds on one million, and fifteen pounds on the remainder.

Section 17.

SECOND SCHEDULE.

57 & 58 Vict.
c. 30.

(1) The estate duty grants paid under section nineteen of the Finance Act, 1894; and

59 & 60 Vict.
c. 16.

(2) The agricultural rates grant paid under section two of the Agricultural Rates Act, 1896; and

59 & 60 Vict.
c. 37.

(3) The Scottish Agricultural rates grant paid under section three of the Agricultural Rates, Congested Districts, and Burgh Land Tax Relief (Scotland) Act, 1896.

THIRD SCHEDULE.

Section 30.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
5 & 6 Vict. c. 35.	The Income Tax Act, 1842.	The third rule of the rules applying to both the preceding cases in section one hundred from "except for the purpose" to "gains of such partnership." Section one hundred and thirty-three, except so far as it is referred to or incorporated in any other enactment.
28 & 29 Vict. c. 30.	The Revenue Act, 1865.	Section six.
54 & 55 Vict. c. 39.	The Stamp Act, 1891.	The following parts of the First Schedule:— The words "and made before a justice of the peace" in the exemption numbered (2) under the heading "AFFIDAVIT and STATUTORY DECLARATION." "CERTIFICATE of any goods, " wares, or merchandise, having been " duly entered inwards, which shall " be entered outwards for exporta- " tion at the port of importation, or " be removed from thence to any " other port for the more convenient " exportation thereof, where such " certificate is issued for enabling a " person to obtain a debenture or " certificate entitling him to receive " a drawback of any duty of cus- " toms - - - - 0 4 0" " DEBENTURE or CERTIFICATE for " entitling any person to receive any " allowance by way of drawback or " otherwise payable out of the re- " venue of customs or excise, for or " in respect of any goods, wares, or " merchandise exported or shipped to " be exported from the United King- " dom to any part beyond the sea. " Where the allowance " to be received does not " exceed 10%. - - - 0 1 0 " Exceeds 10%. and does " not exceed 50%. - - 0 2 6 " Exceeds 50%. - - - 0 5 0"
57 & 58 Vict. c. 30.	The Finance Act, 1894.	The scale of the rates of estate duty in section seventeen, except as respects persons dying before the nineteenth day of April nineteen hundred and seven.

Session and Chapter.	Short Title.	Extent of Repeal.
63 & 64. Vict. c. 7.	Finance Act, 1900 -	In section two, the words "as from the sixth day of March nineteen hundred until the first day of August nineteen hundred and one." In section three, the words "as from the sixth day of March nineteen hundred until the first day of August nineteen hundred and one." In section four, the words "as from the sixth day of March nineteen hundred until the first day of August nineteen hundred and one," and the words "in and for the same period." In section five the words "as from the sixth day of March nineteen hundred until the first day of August nineteen hundred and one," wherever they occur, and the words "This section shall not affect the continuance after the first day of August nineteen hundred and one of the duties existing prior to this section taking effect." In section six the words "as from the sixth day of March nineteen hundred until the first day of August nineteen hundred and one," and the words "between the fifth day of March nineteen hundred and the first day of August nineteen hundred and one." In section seven the words "as from the sixth day of March nineteen hundred until the first day of August nineteen hundred and one."

CHAPTER 14.

An Act to make better provision as to the Relief of Persons released from detention in Prisons, Reformatory and Industrial Schools, and Inebriate Reformatories.

[21st August 1907.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) Where it appears to a justice of the peace having jurisdiction in the place where a prison is situate, or being a

Relief of
released
prisoner.